

Amendment No. 1 to HB2368

Farmer
Signature of Sponsor

AMEND Senate Bill No. 2543*

House Bill No. 2368

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 13, Part 9, is amended by adding the following new section:

(a) A person commits the offense of unauthorized operation of an unmanned aircraft who operates an unmanned aircraft within four hundred feet (400') of or above a ticketed entertainment event.

(b) A violation of this section is a Class A misdemeanor.

(c) Subsection (a) does not apply when a person who operates an unmanned aircraft:

(1) Has obtained consent by any person with legal authority over a ticketed entertainment event;

(2) Is authorized by the federal aviation administration to operate an unmanned aircraft and is operating the unmanned aircraft in a lawful manner and consistent with federal regulations;

(3) Is an employee of the property where the ticketed entertainment event is held and is conducting official business;

(4) Is an employee of a water, sewer, electrical, telephone, cable, or other regulated utility service provider and is conducting official business;

(5) Is a law enforcement officer engaged in the actual discharge of official duties;

(6) Is a member or employee of any branch of the United States armed forces or the military forces of this state engaged in the actual discharge of official duties;

(7) Is an emergency management officer of this state or of any city, town, municipality, metropolitan government, or county of this state engaged in the actual discharge of official duties; or

(8) Is an owner of private property who is operating an unmanned aircraft above such property; provided, that the operation is:

(A) Consistent with federal regulations;

(B) Not for the purpose of interfering in any way with a ticketed entertainment event; and

(C) Not to surveille or capture images of security procedures for unlawful purposes.

(d) As used in this section, "ticketed entertainment event" means any music, sporting, or performing arts event held in a location with gated entries or barriers that prevent access to the general public and in which a ticket that has been issued by an owner, operator, or lessee of such property is required for attendance at such event.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts occurring on or after that date.